

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Team # 5	CCRB Case #: 201303651	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Wednesday, 02/13/2013 8:10 AM	Location of Incident: § 87(2)(b) Brooklyn Central Booking, and § 87(2)(b)		18 Mo. SOL 8/13/2014		Precinct: 83
Date/Time CV Reported Thu, 05/02/2013 1:38 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Thu, 05/02/2013 1:38 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Joseph Viggiano	06676	919824	WARRSEC
2. SGT Raymond Tomins	05336	902480	WARRSEC
3. DT3 Jose Dejesus	07401	901430	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Eric Meza	05566	925744	WARRSEC
2. DT3 Michael Perez	02470	930939	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . SGT Raymond Tomins	Abuse: Sgt. Raymond Tomins entered and searched § 87(2)(b) in Brooklyn.	A . Exonerated
B . SGT Raymond Tomins	Abuse: Inside § 87(2)(b) in Brooklyn, Sgt. Raymond Tomins searched § 87(2)(b) and § 87(2)(b)	B . Unsubstantiated
C . DT3 Jose Dejesus	Abuse: Inside of § 87(2)(b) in Brooklyn, Det. Jose Dejesus searched § 87(2)(b) and § 87(2)(b)	C . Unsubstantiated
D . SGT Raymond Tomins	Abuse: Inside of § 87(2)(b) in Brooklyn, Sgt. Raymond Tomins threatened § 87(2)(b) with the use of force.	D . Unsubstantiated
E . DT3 Joseph Viggiano	Abuse: Inside of § 87(2)(b) in Brooklyn, Det. Joseph Viggiano threatened § 87(2)(b) with the use of force.	E . Unsubstantiated
F . DT3 Jose Dejesus	Abuse: En route to § 87(2)(b) Det. Jose Dejesus threatened § 87(2)(b) with the use of force.	F . Unsubstantiated
G . SGT Raymond Tomins	Discourtesy: Inside of § 87(2)(b) in Brooklyn, Sgt. Raymond Tomins spoke rudely to § 87(2)(b)	G . Unsubstantiated
H . DT3 Joseph Viggiano	Discourtesy: Inside of § 87(2)(b) in Brooklyn, and en route to Brooklyn Central Booking, Det. Joseph Viggiano spoke rudely to § 87(2)(b)	H . Unsubstantiated

Officer(s)	Allegation	Investigator Recommendation
I . DT3 Jose Dejesus	Discourtesy: En route to and inside of Brooklyn Central Booking, Det. Jose Dejesus spoke rudely to § 87(2)(b)	I . Unsubstantiated
J . DT3 Joseph Viggiano	Force: Inside of § 87(2)(b) in Brooklyn, and inside of Brooklyn Central Booking, Det. Joseph Viggiano used physical force against § 87(2)(b)	J . Unsubstantiated
K . DT3 Jose Dejesus	Force: Inside of § 87(2)(b) in Brooklyn, inside of Brooklyn Central Booking, and en route to § 87(2)(b) Det. Jose Dejesus used physical force against § 87(2)(b)	K . Unsubstantiated
L . DT3 Joseph Viggiano	Off. Language: En route to and inside of Brooklyn Central Booking, Det. Joseph Viggiano made remarks to § 87(2)(b) based upon race.	L . Unsubstantiated
M . DT3 Jose Dejesus	Off. Language: En route to and inside of Brooklyn Central Booking, Det. Jose Dejesus made remarks to § 87(2)(b) based upon his perceived sexual orientation.	M . Unsubstantiated

Case Summary

On May 2, 2013, § 87(2)(b) filed a complaint with the CCRB via mail. On February 13, 2013, at approximately 8:10 a.m., in the vicinity of § 87(2)(b) in Brooklyn, § 87(2)(b) was apprehended by Det. Joseph Viggiano of Brooklyn North Warrants Squad. The following allegations resulted:

Allegation A – Abuse of Authority: Sgt. Raymond Tomins entered and searched § 87(2)(b) in Brooklyn. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegation A be closed as Exonerated.

Allegation B – Abuse of Authority: Inside of § 87(2)(b) in Brooklyn, Sgt. Raymond Tomins searched § 87(2)(b) and § 87(2)(b)

Allegation C – Abuse of Authority: Inside of § 87(2)(b) in Brooklyn, Det. Jose Dejesus searched § 87(2)(b) and § 87(2)(b)

Allegation D – Abuse of Authority: Inside of § 87(2)(b) in Brooklyn, Sgt. Raymond Tomins threatened § 87(2)(b) with the use of force.

Allegation E – Abuse of Authority: Inside of § 87(2)(b) in Brooklyn, Det. Joseph Viggiano threatened § 87(2)(b) with the use of force.

Allegation F – Abuse of Authority: En route to § 87(2)(b) Det. Jose Dejesus threatened § 87(2)(b) with the use of force.

Allegation G – Discourtesy: Inside of § 87(2)(b) in Brooklyn, Sgt. Raymond Tomins spoke rudely to § 87(2)(b)

Allegation H – Discourtesy: Inside of § 87(2)(b) in Brooklyn, and en route to Brooklyn Central Booking, Det. Joseph Viggiano spoke rudely to § 87(2)(b)

Allegation I – Discourtesy: En route to and inside of Brooklyn Central Booking, Det. Jose Dejesus spoke rudely to § 87(2)(b)

Allegation J – Force: Inside of § 87(2)(b) in Brooklyn, and inside of Brooklyn Central Booking, Det. Joseph Viggiano used physical force against § 87(2)(b)

Allegation K – Force: Inside of § 87(2)(b) in Brooklyn, inside of Brooklyn Central Booking, and en route to § 87(2)(b) Det. Jose Dejesus used physical force against § 87(2)(b)

Allegation L – Offensive Language: En route to and inside of Brooklyn Central Booking, Det. Joseph Viggiano made comments to § 87(2)(b) based upon race.

Allegation M – Offensive Language: En route to and inside of Brooklyn Central Booking, Det. Jose Dejesus made comments to § 87(2)(b) based upon his perceived sexual orientation. § 87(2)(g)

§ 87(2)(b) it is recommended that Allegations B, C, D, E, F, G, H, I, J, K, L, and M be closed as Unsubstantiated.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b)

Statement to Medical Personnel

On February 13, 2013, upon admission to § 87(2)(b) § 87(2)(b) told medical personnel that he sustained swelling and pain to his right finger after falling off his bicycle the day prior.

CCRB Statement

§ 87(2)(b) provided statements pertaining to this incident in filing a written complaint on April 26 (encl. [4A]), in a written letter to the CCRB on May 2 (encl. [4B-G]), and was interviewed over the telephone on May 15 and 16, 2013 (encl. [4H-Q]). § 87(2)(g) On December 30, 2012, § 87(2)(b) violated the conditions of his parole by leaving a court-mandated rehabilitative drug program. Sometime after leaving this drug program, § 87(2)(b) moved in with his family at § 87(2)(b) in the Brooklyn. § 87(2)(b) also missed a scheduled parole-related court appearance on January 7, 2013, after which a warrant was issued for his arrest. On February 13, 2013, at approximately 7:30 a.m., § 87(2)(b) returned to § 87(2)(b) and fell asleep on the sofa in the living room, which is the first room upon entry into the apartment. Three of his cousins, § 87(2)(b) and § 87(2)(b) all were also at that location. § 87(2)(b) was not intoxicated at this time. At approximately 8:05 a.m., § 87(2)(b) awoke when heard knocking at the door. § 87(2)(b) ignored the knocking and tried to go back to sleep. § 87(2)(b) opened the door. § 87(2)(b) heard an officer ask, “Does § 87(2)(b) live here?”

When § 87(2)(b) first saw the officers, they had already entered the apartment. Officers woke § 87(2)(b) up, told him that they had a warrant for § 87(2)(b) and that he would have to be fingerprinted. § 87(2)(b) described one of these officers as a dark-skinned Hispanic male, 5’3” tall, with muscular or slightly chubby build, in his late 30s to early 40s, with salt-and-pepper scruff. This officer was identified by the investigation as Det. Jose Dejesus. § 87(2)(b) described another of these officers as a very light-skinned white male, 5’7” to 5’8” tall, with muscular build, in his 40s, with blond hair in a Caesar cut. This officer was identified by the investigation as Det. Joseph Viggiano. The third officer § 87(2)(b) described as a white male, “very tall,” or approximately 5’8” tall, late 40s to 50s, overweight build, with dirty-blond hair and a beard, who possibly wore glasses. This officer was identified by the investigation as Sgt. Raymond Tomins. § 87(2)(b) told these officers, “I’m not getting fingerprinted. What’s going on?” Det. Dejesus asked § 87(2)(b) “Do you know § 87(2)(b) also known as § 87(2)(b) § 87(2)(b) had fathered the children of § 87(2)(b)’s cousin several years prior, though he did not know him personally. Det. Dejesus requested § 87(2)(b)’s identification. § 87(2)(b) did not have identification because he had lost his wallet. Det. Dejesus took a fingerprinting device from Sgt. Tomins and three or four times told § 87(2)(b) that he would be fingerprinted and have his picture taken. § 87(2)(b) verbally refused. Det. Viggiano and Sgt. Tomins told § 87(2)(b) “If you refuse to get fingerprinted, you’re going to get beat down.”

Det. Dejesus and Sgt. Tomins ordered all civilians to empty their pockets. All complied. A closet in the living room was searched. § 87(2)(b) did not see which officer searched it, but saw when he left that the closet door was open, and that items that had been on the closet shelves were on the floor. § 87(2)(b) also saw that Det. Viggiano and Sgt. Tomins entered different rooms in the apartment besides the living room, including the kitchen. § 87(2)(b) saw Sgt. Tomins looking at and moving objects on shelves surrounding television in the living room. Sgt. Tomins told § 87(2)(b) that he was a “smartass,” and an “asshole.” A female individual came to

the second-floor apartment. Officers would not allow her to enter. § 87(2)(b) did not know if this female was arrested, and did not know any identifying information for her.

Det. Dejesus and Det. Viggiano escorted § 87(2)(b) from the apartment to the ground-floor hallway, near the front door to the building, where they questioned § 87(2)(b) about § 87(2)(b). Det. Viggiano told § 87(2)(b) that there was a parole warrant for him, that if he did not cooperate, they would maximize his sentence, and that he was “acting like an asshole.” Either Det. Dejesus or Det. Viggiano and Det. Dejesus pushed § 87(2)(b) face-first against a wall. Det. Dejesus handcuffed § 87(2)(b). § 87(2)(b) told Det. Dejesus, “I don’t want to cooperate with you.” Det. Dejesus twisted § 87(2)(b)’s right hand three to four times in order to place his finger inside of the fingerprinting device, an action which dislocated the ring finger of his right hand. When asked if he specifically recalled what Det. Dejesus did that caused his finger to be dislocated, § 87(2)(b) said, “I don’t know how it happened. All I know is it happened.” Det. Viggiano screamed at § 87(2)(b) “Cooperate, or you’ll get beat up,” and, “If you don’t cooperate now, you’re going to regret it.” Either Det. Viggiano or Det. Dejesus punched § 87(2)(b) in his lower back twice and slapped him across the back of his head. § 87(2)(b) believed that Det. Dejesus struck him and otherwise “did all the harassment,” but did not actually see if this was the case. § 87(2)(b) denied physically resisting officers.

§ 87(2)(b) was escorted to a light gray or silver unmarked minivan parked outside. Det. Dejesus climbed into the passenger seat next to the driver, an officer who § 87(2)(b) described as a white male, 5’4” tall, with slim to muscular build, and golden brown hair, whose age § 87(2)(b) was unable to estimate. Det. Viggiano and Sgt. Tomins got into another minivan on scene in which two officers were already seated, both of whom § 87(2)(b) could describe only as white males. Det. Dejesus and the driver conducted additional operations. During this time, Det. Dejesus called him a “dickhead,” a “dumbass,” and an “asshole,” and the driver called him a “spic.” The driver and Det. Dejesus transported § 87(2)(b) to Brooklyn Central Booking. § 87(2)(b) told an officer, described only as a black male, possibly from Department of Corrections, that his finger was dislocated or broken, and that officers had assaulted him. The officer at Central Booking told the officers to transport § 87(2)(b) to the hospital. As they left Central Booking, Det. Dejesus slapped § 87(2)(b) across the back of his head and said, “I could be whipping’ your ass right now.” § 87(2)(b) was escorted to § 87(2)(b). Both Det. Dejesus and the driver told § 87(2)(b) that if he told the doctors what happened, they would tack on additional charges, and instructed him to tell the doctor that he sustained his injury by falling off of his bike. § 87(2)(b) was never able to tell medical personnel how his injury was actually sustained. § 87(2)(b)

When he was discharged, Det. Dejesus again smacked § 87(2)(b) on the back of his head. As they drove to Brooklyn Central Booking, Det. Dejesus repeatedly called § 87(2)(b) a “faggot,” a “loser,” and a “dickhead,” and said, “Shut up. If you speak one more time, I’m gonna whip your ass.” The driver told § 87(2)(b) that he was a “piece of shit.” Both officers escorted § 87(2)(b) into Brooklyn Central Booking. While waiting for an elevator to arrive, the driver grabbed § 87(2)(b) by his waist and his handcuffs, slammed him face-first into a wall, and him § 87(2)(b) that it would be his last opportunity to speak. Det. Dejesus also told another Department of Corrections officer, “He’s an asshole. He didn’t want to cooperate.” § 87(2)(b) sustained no other injuries except back pain.

Witness: § 87(2)(b)

- § 87(2)(b)
§ 87(2)(b) is § 87(2)(b)’s cousin.

CCRB Statement

§ 87(2)(b) provided telephone statements on May 30 (encl. [4R]) and July 19, 2013 (encl. [4S]). § 87(2)(b) leases the § 87(2)(b) -floor apartment at § 87(2)(b) where his brother, § 87(2)(b) his cousin, § 87(2)(b) and § 87(2)(b) were staying. All were asleep in the bedroom at the rear of the house when § 87(2)(b) heard knocking. § 87(2)(b) answered the door, at which time he observed four or five police officers, only three of which he could describe. One was a white male, 6'0" to 6'2" tall, 30 years old, with husky build and blond hair, and was identified by the investigation as Det. Viggiano. The second officer was a brown-skinned Hispanic male, 5'2" to 5'4" tall, late 20s, with athletic build, and short black hair. This officer was identified by the investigation as Det. Dejesus. § 87(2)(b) described the third officer as a black male, 6'1" tall, in his mid-thirties, bald-headed, with athletic or stocky build. This officer remains unidentified.

Det. Viggiano displayed a warrant for and pictures of § 87(2)(b) unknown to § 87(2)(b) but to whom Det. Viggiano referred as "§ 87(2)(b)" and asked for permission to enter the apartment. § 87(2)(b) said, "Yes, no problem," and held the door open for the officers. Det. Viggiano requested identification and fingerprints from all individuals inside the apartment. All were compliant except for § 87(2)(b) who twice verbally refused the officers but who did not physically resist. § 87(2)(b) did not allege that officers ordered him or any other civilian to empty their pockets. During this time, other officers were in different rooms of the apartment, though § 87(2)(b) did not know which rooms specifically, and did not see officers search any space smaller than where a person could hide. Det. Viggiano and the black male officer escorted § 87(2)(b) from the apartment with all other officers following behind. § 87(2)(b) did not recall what, if anything, officers said to § 87(2)(b) inside the apartment. § 87(2)(b) did not see officers use force against § 87(2)(b) and § 87(2)(b) remained in the apartment. § 87(2)(b) heard a commotion from downstairs, followed by § 87(2)(b) screaming that his arm hurt. To § 87(2)(b)'s knowledge, § 87(2)(b) was not injured prior to this incident.

§ 87(2)(b) refused to provide an in-person statement, indicating that he did not want to be involved. § 87(2)(b) did not mention any female civilian being apprehended on scene.

Attempts to Contact Civilians

On June 5, 2013, § 87(2)(b) provided a telephone number for § 87(2)(b) but could not provide any contact information for § 87(2)(b). Searches of relevant databases for § 87(2)(b) or Santiago and § 87(2)(b) including COLES, Whitepages, and Lexis Nexis, returned no results. On June 6, 2013, a BADS database search returned results for mailing addresses for both, as well as telephone numbers of third-party individuals that were called during their recent arrests. Between June 6, 2013 and June 20, 2013, five attempts were made to contact § 87(2)(b) at this number. Each time, the undersigned either left a voice message or reached his brother, John § 87(2)(b) who had no knowledge of this incident. Between June 6, 2013, and June 18, 2013, two attempts were made to reach § 87(2)(b) through the third-party number, which was disconnected. On June 6 and June 18, 2013, please-call letters were sent to each. To date, neither letter has been returned as undeliverable.

§ 87(2)(b) indicated that there was an unknown female who came to § 87(2)(b) in Brooklyn. In his telephone statements, § 87(2)(b) mentioned nothing about this female, and subsequent attempts to reach him for further information by mail and telephone on September 18, 2013, were unsuccessful. None of the officers interviewed recalled or noted her name or other identifying information in their memo books. No arrest report is prepared for prisoners brought to Central Booking on a parole warrant, nor are they lodged at Central Booking with other defendants. No prisoners brought in by Warrants Squad were listed on the court section detention

pen log. On August 20, 2013, the undersigned contacted Lt. Sharon Webb of Brooklyn Central Booking, who confirmed that prisoners brought in on parole warrants would be brought directly to the Department of Corrections, and the only NYPD documentation of such would be the medical treatment of prisoner form. Without the female's name, or any other identifying information, the investigation was unable to identify or contact her. As such, the female individual remains unidentified.

NYPD Statements:

Subject Officer: DET. JOSEPH VIGGIANO

- *At the time of the incident, Detective Joseph Viggiano was § 87(2)(b) old. Det. Viggiano is a white male, § 87(2)(b) with balding brown hair and eyes.*
- *Det. Viggiano is an officer of Brooklyn North Warrant Squad. On the date of the incident, Det. Viggiano was scheduled to work from 4:27 a.m. until 1 p.m. Det. Viggiano was assigned to a Fugitive Enforcement with Sergeant Raymond Tomins and Detective Eric Meza. All three were in plainclothes and assigned to an unmarked minivan § 87(2)(e), § 87(2)(b).*

Memo Book (encl. [5A-C])

At 8:25 a.m., Det. Viggiano was present at § 87(2)(b) in Brooklyn. At 8:35 a.m., two individuals were arrested on warrants. At 8:50 a.m., Det. Viggiano resumed patrol. At 10:15 a.m., Det. Viggiano was present at Brooklyn Central Booking. At 11:10 a.m., Det. Viggiano was present at § 87(2)(b). At 2 p.m., Det. Viggiano returned to Brooklyn Central Booking. At 3 p.m., Det. Viggiano returned to his command. At 4:22 p.m., Det. Viggiano ended his tour.

Warrant Investigative Data (encl. [5D-F])

The parole warrant for § 87(2)(b) listed § 87(2)(b) in the Bronx as his address. The narrative section, which was completed by Det. Viggiano at 3:53 p.m. on February 13, 2013, states that while conducting investigation on warrant number § 87(2)(b) at § 87(2)(b) in Brooklyn, it was revealed via thumb scanner that the subject had an active parole warrant. Sgt. Tomins was on scene. § 87(2)(b) was transported to Central Booking and was then lodged with Department of Corrections after a visit to § 87(2)(b) for a prior injury. The subject has an additional warrant, § 87(2)(b) which was attached with his paperwork. § 87(2)(b) and § 87(2)(b) were present at the location.

CCRB Statement (encl. [5G-L])

Det. Viggiano was interviewed at the CCRB on July 23, 2013. At approximately 8:25 a.m. on February 13, 2013, Det. Viggiano arrived with his Fugitive Enforcement team at § 87(2)(b) in Brooklyn. The team was divided into two unmarked vans. Det. Viggiano rode with Sgt. Tomins and Det. Meza. Det. Michael Perez and Det. Jose Dejesus were in the second vehicle. The team carried with them a mobile fingerprinting scanner, which also functions as a camera. The scanner identifies anyone in an NYPD database, including their arrest and wanted history. Det. Viggiano described the scanner as flat, roughly the size and shape of a memo book. The scanner is used by placing the individual's thumb at the bottom of the scanner on a touch screen. There is no space on the fingerprinting scanner where a finger is inserted. Procedurally, only the thumb is fingerprinted.

Det. Viggiano works on a special team within Fugitive Enforcement that handles parole warrants. Det. Viggiano was the lead investigator on the parole warrant conducted at § 87(2)(b).

Street. Det. Viggiano had never visited the location prior, and had no general knowledge of the location prior to this day. The warrant to be enforced was a parole warrant for § 87(2)(b) for a burglary offense. Det. Viggiano believed § 87(2)(b) resided at § 87(2)(b) because he had a codefendant who resided there. Det. Viggiano thought this codefendant was named § 87(2)(b) a cousin of the tenant of § 87(2)(b). Det. Viggiano did not know for which arrest § 87(2)(b) and § 87(2)(b) were co-defendants. Det. Viggiano did not recall if he had any other reason to conduct enforcement at this location.

Upon arrival at the location, all members of the team exited entered the building. Det. Viggiano indicated that the building has a basement apartment, a first floor apartment, and a second floor apartment., accessible through a main entrance on the first floor. Upon entry, there is a small vestibule or foyer. There is a door to the first floor apartment, then a steep set of steps to the second floor apartment. Det. Viggiano did not recall how the team was able to gain access to the first floor of the building, but thought either the front door was open or the first-floor residents came to the door and allowed them to enter.

The team proceeded to the second floor apartment, where they knocked on the door. § 87(2)(b) who Det. Viggiano described as “one of the § 87(2)(b) a male in his twenties, and identified by the investigation as § 87(2)(b) opened the door. Det. Viggiano explained to § 87(2)(b) that he had a warrant for § 87(2)(b). Det. Viggiano displayed the warrant for § 87(2)(b) to § 87(2)(b). § 87(2)(b) indicated that he knew § 87(2)(b) and that he was not there. Det. Viggiano requested permission to “look around, see if § 87(2)(b) was there.” § 87(2)(b) provided permission for them to enter. Det. Viggiano did not recall the exact phrasing of § 87(2)(b)'s consent.

Once permission was received, all officers then entered the apartment. Det. Viggiano proceeded to the bedroom, where he observed three or four individuals, identified by the investigation as § 87(2)(b) and § 87(2)(b). Det. Viggiano requested the identification of these individuals. All except § 87(2)(b) complied. At no point did Det. Viggiano or any other officer order the civilians inside the apartment to empty all of their pockets. § 87(2)(b) was curled up in a corner of the room and did not appear to want to show his face. Det. Viggiano requested his identification a couple of times, but the individual did not respond to these requests. Once this individual, identified by the investigation as § 87(2)(b) awoke, Det. Viggiano realized that he looked familiar. Det. Viggiano knew that another Warrants Squad officer, PO Matthew Brennan, was actively looking for him on multiple warrants. PO Brennan was not present during this incident. Det. Viggiano did not recall exactly how he knew this, but thought it may have been through conversations with PO Brennan or through reviewing paperwork, as he shares an office with PO Brennan. Det. Viggiano also mentioned that part of his duties as an officer of the Warrants Squad is to review paperwork and other warrants. Det. Viggiano further added that he was familiar with § 87(2)(b)'s biographical information from his general police knowledge, as he has worked in that particular neighborhood for 12 to 13 years, and reviews many active parole and other warrants which contain photographs and biographical information. Det. Viggiano had seen a photograph of § 87(2)(b) before, and recognized him due to his short height and heavyset build. Det. Viggiano had no knowledge that would lead him to believe § 87(2)(b) would be present at § 87(2)(b) on this day. Det. Perez, also inside the apartment at this time, also recognized this individual from a previous arrest.

§ 87(2)(b) was fingerprinted inside the apartment. Det. Viggiano did not recall which officer fingerprinted him. § 87(2)(b) was compliant throughout this incident. Officers looked around the apartment to see if any individuals were hiding, including under the bed, in closets, and in the shower. Det. Viggiano did not remember which members of his team were looking around the apartment. No space smaller than where a person might hide was searched. Once the

fingerprinting results confirmed that he had an active parole warrant and a felony bench warrant, § 87(2)(b) was apprehended. Det. Viggiano did not remember which officer handcuffed § 87(2)(b). Det. Viggiano mentioned that while the officers were in the apartment, a female entered the second floor. Det. Viggiano did not recall the name of this female and did not have it noted in his memo book. The officers discovered that she had a misdemeanor bench warrant. The female was compliant. Det. Viggiano thought that Det. Perez was assigned her arrest.

Once both defendants were handcuffed, all officers left. § 87(2)(b) was placed in Det. Viggiano's vehicle. Det. Viggiano did not recall which other officer, if any, was in the vehicle with him. Det. Viggiano explained that sometimes vehicle occupants will be switched depending on the assignment changes during the course of conducting enforcement, but he did not recall if this occurred on this day. The team had also apprehended § 87(2)(b) earlier in the day on a separate case. Det. Viggiano did not recall which prisoners were in which vehicle. Once in the vehicle, Det. Viggiano and § 87(2)(b) had a generic conversation about his residence, his employment status, his relatives, and § 87(2)(b). § 87(2)(b) complained about an injury he sustained prior to the incident, and told Det. Viggiano that he had broken his finger while skateboarding. § 87(2)(b) showed Det. Viggiano his finger, which appeared to be crooked, or bent at the knuckle. § 87(2)(b) did not complain to Det. Viggiano of any other injury.

Det. Viggiano and Det. Dejesus transported § 87(2)(b) to the hospital. Once § 87(2)(b) was discharged, Det. Viggiano returned him to Central Booking. Det. Viggiano indicated that an arrest report proper is not prepared when § 87(2)(b) is brought in on a parole warrant. Instead, Det. Viggiano prepared a "lodging sheet," which lists the pedigree information, location of apprehension, brief medical history, and emergency contact information. An entry was also made in the ADW system regarding his apprehension.

Det. Viggiano did not search any space in the apartment smaller than where a person could hide, nor did he see an officer do so. When questioned about the various allegations of physical force, Det. Viggiano denied using physical force against § 87(2)(b) or seeing any officer do so. At no point did Det. Viggiano threaten § 87(2)(b) nor did he hear any officer do so. At no point did Det. Viggiano instruct § 87(2)(b) what to tell medical personnel about his injury, or hear any officer do so. When questioned about the various allegations of discourtesy and offensive language, Det. Viggiano denied using such language or hearing any officer do so.

Witness Officer: SGT. RAYMOND TOMINS

- *At the time of the incident, Sgt. Tomins was § 87(2)(b) old. Sgt. Tomins is a white male, § 87(2)(b), with salt and pepper hair, a goatee, and hazel eyes.*
- *Sgt. Tomins is an officer of Warrants Section Brooklyn North. On the date of the incident, Sgt. Tomins was scheduled to conduct Warrant Enforcement from 4:15 a.m. until 12:50 p.m. Sgt. Tomins was partnered with Det. Meza and Det. Viggiano. Sgt. Tomins was in plainclothes and was assigned to unmarked silver minivan rental number § 87(2)(e), § 87(2)(f).*

Memo Book (encl. [5M-O])

At 8:25 a.m., Sgt. Tomins was present at § 87(2)(b) in Brooklyn. At 8:35 a.m., Sgt. Tomins noted two arrests. At 8:50 a.m., Sgt. Tomins continued enforcement. At 9:40 a.m., Sgt. Tomins returned to his command. At 2 p.m., Sgt. Tomins ended his tour.

CCRB Statement (encl. [5P-S])

Sgt. Tomins was interviewed on August 14, 2013, at the CCRB. § 87(2)(g)

Sgt. Tomins recalled no details of the warrants active at this location, only that there was "no problem" gaining access to the apartment. Upon observing § 87(2)(b) on the sofa, Det.

Viggiano told Sgt. Tomins, “He looks like the guy we’re looking for.” Sgt. Tomins did not know if Det. Viggiano was referring to the investigation at § 87(2)(b) or a different investigation. Sgt. Tomins did not know how Det. Viggiano recognized § 87(2)(b). Sgt. Tomins did not recall if § 87(2)(b) provided resistance to officers. § 87(2)(b) was neither handcuffed nor escorted from the apartment prior to being thumb printed. Sgt. Tomins did not know any identifying information for the female who came to the apartment. Sgt. Tomins did not recall if vehicle assignments changed after leaving § 87(2)(b) or into which vehicles the defendants were placed. After leaving the apartment, Sgt. Tomins did not again see § 87(2)(b). Sgt. Tomins recalled receiving a phone call from Det. Viggiano, who indicated that one of the defendants needed to be transported to the hospital. When questioned about the various allegations, Sgt. Tomins denied committing them, or seeing any officer do so. Sgt. Tomins did not recall issuing any particular orders to his officers. Sgt. Tomins also indicated that he did not know the names of forms that are completed for individuals brought to Central Booking on parole warrants.

Witness Officer: DET. JOSE DEJESUS

- *At the time of this incident, Det. Dejesus was § 87(2)(b) old. Det. Dejesus is a Hispanic male, § 87(2)(b), with salt and pepper hair and brown eyes.*
- *At the time of the incident, Det. Dejesus was an officer of Warrants Squad Brooklyn North. Det. Dejesus has since been transferred to Warrants Squad Staten Island. Det. Dejesus was assigned to an unmarked van, the color and make of which he could not recall and whose number he did not note in his memo book, with Det. Michael Perez.*

Memo Book (encl. [5T-V])

At 8:25 a.m., arrived at § 87(2)(b). At 8:35 a.m., two individuals were arrested on a warrant. At 10 a.m., Det. Dejesus responded to Brooklyn Central Booking. At 2:30 p.m., a prisoner was hospitalized. At 3 p.m., Det. Dejesus returned to Brooklyn North Warrants Squad. At 3 p.m., Det. Dejesus ended his tour.

CCRB Statement (encl. [5W-Y])

Det. Jose Dejesus was interviewed at the CCRB on September 18, 2013. Det. Dejesus and Det. Perez had a defendant in their vehicle from prior enforcement. Det. Dejesus believed that Det. Perez remained in the vehicle with this defendant while he entered § 87(2)(b) with Det. Viggiano, Det. Meza, and Det. Viggiano. Det. Dejesus noted that § 87(2)(b) appeared to be abandoned, or “gutted out,” and was possibly occupied by squatters. Det. Dejesus did not recall how officers accessed the location, but he thought it possible that all doors at the location were open. Det. Dejesus had no further identifying information for the female. Det. Dejesus indicated that though he did not recall who thumb-printed § 87(2)(b) it was not him, as he has not been trained to use this equipment. Although Det. Dejesus did not recall what kind of warrants were active for these defendants, Det. Dejesus indicated that if they were brought in on parole warrants, no kind of NYPD documentation, such as an arrest report, would be prepared. Though Det. Dejesus noted that he responded to a hospital in his memo book, he had no independent recollection of being at a hospital, and did not know if § 87(2)(b) or a different defendant was transported. When questioned about the various allegations, Det. Dejesus denied committing or witnessing any officer commit them.

Witness Officer: DET. MICHAEL PEREZ

Witness Officer: DET. ERIC MEZA

- *At the time of the incident, Det. Perez was § 87(2)(b) old. Det. Perez is a Hispanic male, § 87(2)(b), with brown hair and blue eyes.*

- *At the time of the incident, Det. Meza was § 87(2)(b) old. Det. Meza is a white male, § 87(2)(b) with black hair and brown eyes.*
- *Det. Perez and Det. Meza are officers of Warrant Enforcement Section Brooklyn North. On the incident date, Det. Perez and Det. Meza were scheduled to work from 4:27 a.m. until 3 p.m. conducting Warrant Enforcement. Det. Perez was in plainclothes and worked with Det. Dejesus in unmarked vehicle § 87(2)(e), a minivan, the color and make of which he could not recall. Det. Meza was in plainclothes and was assigned to unmarked minivan, rental auto § 87(2)(b) with Det. Viggiano and Sgt. Tomins.*

Memo Books (encl. [5Z-AB, 5AF-AI])

At 8:25 a.m., Det. Perez and Det. Meza were present at § 87(2)(b) in Brooklyn. At 8:35 a.m., two individuals were arrested. At 8:50 a.m., Det. Perez and Det. Meza continued enforcement. At 10:15 a.m., Det. Perez and Det. Meza responded to Brooklyn Central Booking. At 1:15 p.m., Det. Perez and Det. Meza began driving to Brooklyn Supreme Court. At 3:30 p.m., Det. Perez ended his tour. At 4:25 p.m., Det. Meza ended his tour.

CCRB Statements (encl. [5AC-AE, 5AJ-AL])

Det. Meza was interviewed at the CCRB on August 14, 2013, and Det. Perez was interviewed on September 19, 2013. § 87(2)(g) Det. Meza entered § 87(2)(b) Det. Perez remained in his van with another prisoner. Det. Perez saw two individuals being escorted from § 87(2)(b) § 87(2)(b) and a female. Neither Det. Perez nor Det. Meza recalled the information of the female, or noted it in their memo books. Det. Perez recognized § 87(2)(b) from a prior arrest. Det. Perez could not recall the details of this arrest, noting that he was not the arresting officer. Det. Perez recalled that one defendant was placed in his vehicle, though he did not recall which. Det. Perez recalled that the defendants he transported were calm and did not appear to be injured. Neither Det. Perez nor Det. Meza recalled if they changed vehicle assignments during this incident. Det. Meza thought that he transported § 87(2)(b) to Brooklyn Central Booking, though he did not recall with which officer he did so. Det. Meza thought Det. Viggiano alone escorted § 87(2)(b) to a hospital. Det. Perez also lodged prisoners at Central Booking, though he did not recall which, or with which officer he went. Det. Perez did not transport § 87(2)(b) to the hospital. When questioned about the various allegations, Det. Meza and Det. Perez denied committing them or witnessing any officer do so.

Medical Records

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

NYPD Documents

Medical Treatment of Prisoner Form (encl. [6A])

The form notes that § 87(2)(b) stated he broke his finger last night while doing tricks on his bike. The injury was old, and § 87(2)(b) requested medical attention.

Court Section Detention Pen Log (encl. [6Q-AC])

The court section detention pen log listed no prisoners brought in by Warrants Squad.

Movement Log (encl. [6D-E])

The movement log for February 13, 2013, notes that at 6 a.m., Sgt. Tomins, Det. Meza, and Det. Viggiano were assigned to van 18188, while Det. Dejesus and Det. Perez were assigned to van § 87(2)(e). At 12:15 p.m., Sgt. Tomins, Det. Meza, and Det. Perez returned to command in van § 87(2)(e). At 1:15 p.m., Det. Meza and Det. Perez went to Brooklyn Supreme Court in van § 87(2)(e). At 3:20 p.m., Det. Viggiano and Det. Dejesus returned to command in van § 87(2)(e), while Det. Perez and Det. Meza returned in van § 87(2)(e).

Warrant for § 87(2)(b) & Request for Warrant Data Investigation (encl. 6A-BI)

The bench warrant for § 87(2)(b) lists his address as § 87(2)(b) in Brooklyn. On January 21, 2013, Det. Viggiano wrote that the subject had an active parole warrant, and that warrant number § 87(2)(b) should be seen for investigation. Requests for the warrant data investigation on this warrant were submitted to IAB on May 23, 2013. This request was never received at IAB. A follow-up request was sent on June 6, 2013. This request was returned without any warrant data investigation for § 87(2)(b). A subsequent request was submitted on September 13, 2013. As of the date of this report, this request has not been received (encl. [12A]).

Arrest History of § 87(2)(b), § 87(2)(b) & § 87(2)(b) (encl. [8A-AV])

In none of § 87(2)(b)'s arrests does he provide his address as § 87(2)(b) in Brooklyn. In none of § 87(2)(b)'s 67 arrests does he provide his address as § 87(2)(b) in Brooklyn. In none of these arrest reports does § 87(2)(b) have a co-defendant named § 87(2)(b) or any related arrest report for such § 87(2)(b). A Lexis Nexis search confirmed that § 87(2)(b) named § 87(2)(b) did reside at § 87(2)(b). A BADS search for individuals named § 87(2)(b) returned five arrests, three of which were sealed. None listed any related arrests. Of the two reports that were not sealed, neither listed § 87(2)(b) as the address of the defendant.

NYS Division of Parole Documents (encl. [7A-AP])

A parole absconder warrant was issued for § 87(2)(b) on January 25, 2013 after he left his approved residence at § 87(2)(b) in the Bronx. The Parole Revocation Hearing for § 87(2)(b) notes that § 87(2)(b)'s parole officer, April Moore, was notified of his apprehension by Det. Viggiano of Brooklyn Warrant Squad at § 87(2)(b). April Moore did not know the address and was not notified that § 87(2)(b) lived there. § 87(2)(b) also broke his finger.

Status of Civil Proceedings

- No Notice of Claim has been filed regarding this incident as of January 3, 2014, more than 7 months after the filing deadline (encl. [9A]).

Civilian Criminal Conviction History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by [§ 87(2)(b)] (encl. [2F]).

Subject Officers CCRB History

- Det. Joseph Viggiano has been a member of the service for 16 years and there is one substantiated CCRB allegations against him (encl. [2C]).
 - In case number 201112326, an allegation of premises entered and searched was substantiated and Det. Viggiano received instructions.
- Det. Jose Dejesus has been a member of the service for 21 years and there are two substantiated CCRB allegations against him (encl. [2D-E]).
 - In case number 200606685, an allegation of premises entered and searched was substantiated and Det. Dejesus pled guilty to charges.
 - In case number 2012002895, an allegation of premises entered and searched was substantiated and charges were recommended.
- Sgt. Raymond Tomins has been a member of the service for 21 years and there is one substantiated CCRB allegations against him (encl. [2A-B]).
 - In case number 201206370, an allegation of premises entered and searched was substantiated and charges were recommended.

Conclusion

Identification of Subject Officers

[§ 87(2)(b)] described one of the officers who entered the apartment as a black male, 6'1" tall, in his mid-thirties, bald-headed, with athletic or stocky build. Because there is no black male officer listed on the Warrants Squad team in question, and because [§ 87(2)(b)] did not cooperate with the investigation, this officer remains unidentified.

Because Sgt. Tomins was the only supervisor on scene, allegations of entry and search are pleaded against him. [§ 87(2)(b)] described the officer who ordered all civilians in the apartment to empty their pockets, searched the shelves around a television, called him a 'smartass,' an 'asshole,' and told him that he would get a 'beat down' inside [§ 87(2)(b)] as a white male, 5'8" tall, in his 40s or 50s, with overweight build, dirty blond hair, and glasses. Because this description most closely matches that of Sgt. Tomins, a [§ 87(2)(b)]-old white male, [§ 87(2)(b)], with salt and pepper hair, a goatee, and hazel eyes, these allegations are pleaded against him.

[§ 87(2)(b)] described the officer who called him an 'asshole,' and possibly used physical force against him outside of the apartment, as a white male, 5'7" to 5'8" tall, with muscular build, in his 40s, with short blond hair. This description most closely matches that of Det. Viggiano, a white male, [§ 87(2)(b)], with balding brown hair and eyes.

[§ 87(2)(b)] described the officer who with Sgt. Tomins ordered all civilians to empty their pockets, outside the apartment pushed [§ 87(2)(b)] into a wall, injured his finger, punched him in his back, and slapped across his head, and who in the van and at Central Booking called him a 'dickhead,' a 'dumbass,' a 'dickhead,' a 'loser,' a 'faggot,' an 'asshole,' and threatened to 'whip his ass,' as a Hispanic male, 5'3" tall, muscular or slightly chubby build, in his 30s or 40s,

with salt and pepper scruff. Because this description most closely matches that of Det. Dejesus, who is a § 87(2)(b)-old Hispanic male, § 87(2)(b), with salt and pepper hair and brown eyes, and because the movement log and his memo book notes that he drove to the hospital with Det. Viggiano, allegations of physical force, discourtesy, threat of force, and offensive language are pleaded against him.

§ 87(2)(b) described the officer who in the van called him a ‘spic,’ and a ‘piece of shit,’ and who at Central Booking pushed him face-first into a wall, as a white male, 5’4” tall, slim to muscular build, with golden brown hair, of uncertain age. § 87(2)(b) noted that this officer was not inside the apartment, but was waiting downstairs inside the van. After being placed in the van, § 87(2)(b) only interacted with the driver and with the passenger officer, who as described above was identified by the investigation as Det. Dejesus. The only officer who acknowledged remaining in the van was Det. Perez, a § 87(2)(b)-old Hispanic male, § 87(2)(b), with brown hair and blue eyes. Det. Perez also noted that he had another defendant in the vehicle with him. Because Det. Perez does not match the description provided by § 87(2)(b) and because § 87(2)(b) indicated that he was the only prisoner in his van, Det. Perez may be eliminated as the subject officer. The officer who most closely matches the description provided by § 87(2)(b) is Det. Eric Meza, a § 87(2)(b)-old white male, § 87(2)(b) with black hair and brown eyes. Det. Meza indicated that he transported § 87(2)(b) to Central Booking, but did not go with him to the hospital. However, according to their memo book, at 10:15 a.m., Det. Meza and Det. Perez transported prisoners to Central Booking, and then at 1:15 p.m. transported them to Brooklyn Supreme Court. Neither Det. Meza nor Det. Perez recalled or mentioned in their memo book transporting a defendant to the hospital. Det. Viggiano acknowledged bringing § 87(2)(b) to the hospital, and both he and Det. Dejesus noted the hospitalization of a prisoner at 2:30 p.m. This is also supported by the movement log, which shows that Det. Dejesus and Det. Viggiano were assigned to the same van. Thus despite the fact that the description § 87(2)(b) provided of the driver of the van does not match that of Det. Viggiano, a preponderance of the evidence suggests that he was in fact the driver. Therefore, these allegations have been pleaded against him.

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: Sgt. Raymond Tomins entered and searched § 87(2)(b) in Brooklyn.

The parole warrant for § 87(2)(b) and the parole warrant for § 87(2)(b) do not list § 87(2)(b) as the enforcement location. There is no indication, either in officer statements or NYPD documents, that there was any other reason to conduct enforcement at that particular location. Det. Viggiano indicated that he believed § 87(2)(b) may have been present at that location based upon the fact that one of his co-defendants, § 87(2)(b) a cousin of a tenant at § 87(2)(b) lived at that location. Det. Viggiano was not able provide any information, including the year, of the arrest in which they were co-defendants. Moreover, independent searches of BADS and OCA databases did not yield any results for which § 87(2)(b) and § 87(2)(b) were co-defendants. Beyond the fact that § 87(2)(b) once resided there, Det. Viggiano had no foreknowledge of this location, and had not visited it prior. Requests for investigative data for § 87(2)(b) warrants have not yet been returned.

§ 87(2)(g)
§ 87(2)(b) alleged that the shelves of a closet and shelves surrounding a television in the living room were searched. § 87(2)(b) did not see officers search shelves or anywhere else in the apartment smaller than where a person might hide, though he did see officers enter multiple rooms of the apartment. All officers denied searching any spaces smaller than where a person might be found. All noted that as general procedure upon entry, they conduct a

protective sweep for any individuals who may be hiding, though none recalled who conducted this protective sweep on this day.

A parole warrant is the functional equivalent of an arrest warrant for purpose of having probable cause to apprehend an individual. People v. Diaz, 618, N.Y.S.2d 1000 (1994 – Sup. Ct. Richmond County) (encl. [1A-D]). Officers may search what they reasonably believe to be the parolee’s residence to look for him so long as they reasonably believe the parolee to be present. People v. Smith, N.Y.S.2d 447 (2005 – Sup. Ct. Bronx County) (encl. [1E-H]). A mere search of outdated police records is insufficient to conclude that an address that was valid years ago is an individual’s current residence. Id. An arrest warrant is invalid to search the residence of a third party. People v. Cabral, 560 N.Y.S.2d 71 (1990 – Sup. Ct. Kings County) (encl. [1I-M]) Absent a valid search warrant or exigent circumstances, consent is required to search a location. People v. Lewis, 462 N.Y.S.2d 884 (1983 – 1st Dept.) (encl. [1N-Q]) Consent must be knowing and voluntary, and a false statement regarding the presence of a warrant negates the possibility of consent. Bumper v. North Carolina, 391 U.S. 543 (1968) (encl. [1R-AA])

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that

Allegation A be closed as **Exonerated**.

Allegation B – Abuse of Authority: Inside of § 87(2)(b) **in Brooklyn, Sgt. Raymond Tomins searched** § 87(2)(b) **and** § 87(2)(b)

Allegation C – Abuse of Authority: Inside of § 87(2)(b) **in Brooklyn, Det. Jose Dejesus searched** § 87(2)(b) **and** § 87(2)(b)

Allegation D – Abuse of Authority: Inside of § 87(2)(b) **in Brooklyn, Sgt. Raymond Tomins threatened** § 87(2)(b) **with the use of force.**

Allegation E – Abuse of Authority: Inside of § 87(2)(b) **in Brooklyn, Det. Joseph Viggiano threatened** § 87(2)(b) **with the use of force.**

Allegation F – Abuse of Authority: En route to § 87(2)(b) **Det. Jose Dejesus threatened** § 87(2)(b) **with the use of force.**

Allegation G – Discourtesy: Inside of § 87(2)(b) **in Brooklyn, Sgt. Raymond Tomins spoke rudely to** § 87(2)(b)

Allegation H – Discourtesy: Inside of § 87(2)(b) **in Brooklyn, and en route to Brooklyn Central Booking, Det. Joseph Viggiano spoke rudely to** § 87(2)(b)

Allegation I – Discourtesy: En route to and inside of Brooklyn Central Booking, Det. Jose Dejesus spoke rudely to § 87(2)(b)

Allegation J – Force: Inside of § 87(2)(b) in Brooklyn, and inside of Brooklyn Central Booking, Det. Joseph Viggiano used physical force against § 87(2)(b)

Allegation K – Force: Inside of § 87(2)(b) in Brooklyn, inside of Brooklyn Central Booking, and en route to § 87(2)(b) Det. Jose Dejesus used physical force against § 87(2)(b)

Allegation L – Offensive Language: En route to and inside of Brooklyn Central Booking, Det. Joseph Viggiano made comments to § 87(2)(b) based upon race.

Allegation M – Offensive Language: En route to and inside of Brooklyn Central Booking, Det. Jose Dejesus made comments to § 87(2)(b) based upon his perceived sexual orientation.

§ 87(2)(b) alleged that inside of § 87(2)(b) both Sgt. Tomins and Det. Viggiano told him, “If you refuse to get fingerprinted, you’re going to get beat down.” Sgt. Tomins called § 87(2)(b) a ‘smartass,’ and an ‘asshole.’ As Det. Viggiano and Det. Dejesus escorted him from the apartment, Det. Viggiano told him, “You’re acting like an asshole.” Either Det. Viggiano or Det. Dejesus pushed him against a wall. Det. Dejesus then twisted his right hand to place it in a fingerprinting machine, causing ‘mallet finger’ to § 87(2)(b)’s right ring finger. Det. Viggiano told § 87(2)(b) “Cooperate, or you’ll get beat up,” and, “If you don’t cooperate now, you’re going to regret it.” Either Det. Viggiano or Det. Dejesus punched him in his lower back twice and slapped him across the back of his head. Once inside the van for transport, Det. Viggiano called § 87(2)(b) a “spic,” and a “piece of shit,” while Det. Dejesus called § 87(2)(b) a “faggot,” a “loser,” a “dumbass,” an “asshole,” and a “dickhead.” Det. Dejesus also told § 87(2)(b) that if he spoke one more time, he would “whip [his] ass.” En route to § 87(2)(b)

Det. Dejesus told § 87(2)(b) “I could be whipping your ass right now,” and slapped him multiple times upside his head. Upon their return to Brooklyn Central Booking, Det. Dejesus told an unidentified Department of Corrections officer, described only as a black male, “He’s an asshole. He didn’t want to cooperate.” Det. Viggiano also slammed § 87(2)(b) against a wall in an elevator bay at Central Booking.

§ 87(2)(b) did not recall what, if anything, officers said to § 87(2)(b) inside of § 87(2)(b) and did not witness anything that occurred outside of the apartment. § 87(2)(b) did note that § 87(2)(b) twice refused to be fingerprinted, whereupon Det. Viggiano and Det. Dejesus escorted him outside. § 87(2)(b) did not see what further occurred, though he heard a commotion and § 87(2)(b) screaming about how his arm hurt. To § 87(2)(b)’s knowledge, § 87(2)(b) was not injured prior to this incident. As described above, attempts to identify or contact additional witnesses returned no results.

§ 87(2)(b) reported to medical personnel at § 87(2)(b) that he had been experiencing pain and swelling to the fourth finger of his right hand after a fall from his bicycle the day prior. In his statement to the CCRB, § 87(2)(b) indicated that Det. Dejesus and Det. Viggiano coerced him to provide a false statement to medical providers about how his injury was sustained. § 87(2)(a) PHL § 18(6)

§ 87(2)(b) did not complain of or receive treatment for any other injuries.

Det. Viggiano, Det. Dejesus, Sgt. Tomins, and all other officers denied using physical force against § 87(2)(b). None of the officers interviewed recalled which officer fingerprinted § 87(2)(b) but noted that the fingerprinting machine is actually a thumb scanner and does not take prints from any other finger besides the thumb, and that subjects to be fingerprinted would not typically first be handcuffed. All officers indicated that § 87(2)(b) was compliant with being fingerprinted, and denied coercing § 87(2)(b) to provide a false statement to medical personnel about the manner in which his injury was sustained. Det. Viggiano, Det. Dejesus, Sgt. Tomins,

and all other officers denied using any physical force against § 87(2)(b) threatening him, speaking rudely to him, or making offensive remarks to him.

§ 87(2)(g)

As such, it is recommended that **Allegations B, C, D, E, F, G, H, I, J, K, L, and M** be closed as **Unsubstantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date